

2018 P L C (C.S.) 664

[Lahore High Court]

Before Jawad Hassan, J

TARIQ MEHMOOD MALIK

Versus

CHIEF EXECUTIVE OFFICER and others

W.P. No.165293 of 2018, decided on 19th February 2018

Civil Scince---

---Electric Power Company---Non-statutory rules---Effect--- Transfer of employee---Scope--
-Employee had no vested right to remain posted at a place of his own choice nor could he
insist that he must be posted at one place or the other---Petitioner-employee was liable to be
transferred in the administrative exigencies from one place to another---Transfer of an
employee was not only an incident inherent in the terms of appointment but also implicit as
an essential condition of service in absence of any specific indication to the contrary---
Impugned order was passed in pursuance of duly adopted transfer/posting policy---Employer
company had no statutory service rules---Constitutional petition against impugned order was
not maintainable---Competent authority had prerogative to transfer any employee and Courts
should refrain from interfering in posting and transfer when there was no element of mala
fide---Employee had failed to establish element of mala fide on the part of employer
company while passing the impugned order---Constitutional petition was dismissed in
circumstances.

Kamran Ahmad v. Chief Executive GEPCO and others 2017 PLC (C.S.) 900; Malik Saeed
Akhtar v. Government of Pakistan and others (I.C.A. No.438/2015; Muhammad Zaman and
others v. Government of Pakistan and others 2017 SCMR 571 and Pakistan Defence Officer's
case 2013 SCMR 1707 rel.

Ch. Imran Raza Chadhar for Petitioner.

Ch. Ishtiaq Ahmed for Repondents GEPCO.

ORDER

JAWAD HASSAN, J.---Through the instant Constitutional petition, filed under the
Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has
assailed his transfer order dated 12.02.2018 passed by the Respondent No.2 whereby he has
been transferred from Wazirabad Division to Shakargarh Division.

2. The learned counsel of the Petitioner submitted that the impugned order is illegal and liable
to be set aside on the grounds that the same has been passed on the basis of mala fide; that in
the earlier Writ Petition No.16006/2015 the transfer orders of the Petitioner were suspended
vide order dated 27.05.2015 by this Court; that mere to hamper the proceedings in the said

petition the Respondents have passed another transfer order dated 12.02.2018; that at the new place of posting the Petitioner has enmity with some political figures, therefore, it would be inconvenient in the smooth work of the Petitioner.

3. On the other hand, learned counsel for the Respondents vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition mainly on the grounds that this petition is not maintainable as the Respondents have non-statutory rules; that the representation of the Petitioner against the impugned order has already been dismissed by the competent authority; that admittedly, the Respondents have adopted the PEPCO transfer/posting policy for the officers of DSCOs and all GEPCO Officers having more than three years continuous stay at a particular position have been transferred within GEPCO; that as per the said policy no officer can claim any particular post or station as a right; that as per order dated 16.02.2018 the Petitioner has been relieved off from his duty and new incumbent has taken over the charge of his seat, as such the order has been implemented. Learned counsel has placed reliance on the case titled Kamran Ahmad v. Chief Executive GEPCO and others (2017 PLC (C.S.) 900) and Malik Saeed Akhtar v. Government of Pakistan and others (I.C.A. No.438/2015).

4. Arguments heard and record perused.

5. From the bare examination of the record, it reveals that through the impugned order dated 12.02.2018 the Petitioner and ten other employees/officers were transferred against their respective posts. It is alleged by the Respondents that they have adopted the PEPCO Transfer/Posting Policy in its 86th Meeting held on 19.01.2018 vide agenda item No.5.1 and the impugned order has been passed in pursuant to the said adopted policy. Record further reveals that the Petitioner filed a representation/application against his transfer order dated 12.02.2018 which was dismissed by the Respondents vide order dated 14.02.2018 by giving reasons inter alia that as per the features of the transfer/posting policy approved by the Board of Directors GEPCO, no officer should claim any particular post or station as a right. It is pertinent to mention here that the Petitioner himself stated in his representation filed against the order dated 12.02.2018 that he may be transferred in some particular place in very clear words i.e. "If at all due to any administrative reason compliance of PEPCO directions are mandatory then undersigned may kindly be posted at GEPCO HQ Gujranwala against the following vacant/ tenure completed posts as I have already served for 5-years in Construction filed hence as per policy entitled to be posted.

6. First of all this Court has to see the issue of maintainability of the writ petition. In this regard reliance is placed on the recent judgment of this Court passed in Kamran Ahmed case supra in which this Court has held as under:

"It is noteworthy that in the previous case of the Petitioner reported as, Kamran Ahmad v. WAPDA and others (2014 PLC (C.S.) 332), two following questions were under consideration by this Court:

(i) Whether the Gujranwala Electric Power Company Limited (GEPCO) is discharging functions in connection with the affairs of Federation or a Province within the meaning of clause 5 of Article 199 of the Islamic Republic of Pakistan, 1973 and amenable to the constitutional jurisdiction of the High Court?

(ii) Whether the rules governing terms and conditions of service applicable to the petitioner are statutory and petitioner can enforce these rules through constitutional petition for his induction to the post of "Superintending Engineer" (SE)?

11. In the present case, similar questions may be raised. Importantly, these questions were dealt with by this Court in following words:

"16. Though GEPCO is not a statutory authority as it is not established under a statute but incorporated as a company under the Companies Ordinance, 1984, however, when applied the aforesaid "functional test", it squarely applies to GEPCO. It is an entity wholly owned and controlled by the Government and for all intents and purposes, it follows the policies laid down by the Government of Pakistan regarding supply of electricity under its controlled area. Indeed it is a "public utility company" providing basic amenities to the public at large. Therefore, I have no hesitation to hold that GEPCO is a body corporate performing function in connection with the affairs of the State and therefore, amenable to the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. ..

17. To be a person within the meaning of Article 199(5) of the Constitution and being amenable to constitutional jurisdiction is one thing and to enforce the terms and conditions of service through constitutional jurisdiction is altogether a different thing. Now coming to the question, whether the terms and condition under which the service of the petitioner is governed including 3.1(I)(c) and 3.1(1)(d) of Rules, 1965 are statutory in nature and whether constitutional jurisdiction can be invoked to enforce these terms and conditions of service.

24. Applying the aforesaid principles of law to the case of the petitioner, I feel no hesitation in drawing inference that petitioner is not governed under statutory rules hence terms and conditions of contract of his service are not enforceable through constitutional petition."

12. It is worth mentioning here that since the promotion of the Petitioner is not governed by any statutory Rules, the same cannot be enforced through the constitutional jurisdiction of this Court.

7. As the impugned order was passed in pursuance of the duly adopted the PEPCO Transfer/Posting Policy by the Respondents in its 86th Meeting held on 19.01.2018 vide agenda item No.5.1 which is non-statutory in nature, as such the instant petition against the impugned order is not maintainable. Reliance is also placed on the case titled Muhammad Zaman and others v. Government of Pakistan and others (2017 SCMR 571) in which the Hon'ble Supreme Court of Pakistan has held that since the regulations in question, passed under the amended law, concerned the pension and gratuity matters of employees of SBP are basically instructions for the internal control or management of SBP and are therefore non-statutory. In Pakistan Defence Officer's case (2013 SCMR 1707) the Hon'ble Supreme Court of Pakistan has held as under:

"Where conditions of service of employees of a statutory body are not regulated by Rules/Regulations framed under the Statute but only Rules or Instructions issued for its internal use, any violation thereof cannot normally be enforced through writ jurisdiction and they would be governed by the principle of 'Master and Servant'."

8. Even otherwise, an employee has no vested right to remain posted at a place of his own choice nor can he insist that he must be posted at one place or the other. He is liable to be transferred in the administrative exigencies from one place to other. Transfer of an employee is not only an incident inherent in the terms of appointment but also implicit as an essential condition of service in the absence of any specific indication to the contrary. No Department can function if an employee insists that he should be posted at the place of his own choice and desire. In the matters relating to the posting and transfer of an employee the apex Court has held that the transfer and posting at a particular place is not a vested right of an employee rather the Competent Authority is the best judge of necessary features of service. It is the sole prerogative of the Respondents/Competent Authority to transfer any employee and the Courts usually refrains from interfering in postings and transfers particularly where there is no element of mala fide. The Petitioner has failed to establish from the record appended with the petition, any element of mala fide on the part of the Respondents/ Department while passing the impugned order, hence the same cannot be held to be illegal.

9. In view of the above situation, the instant petition is dismissed.

ZC/T-3/L Petition Dismissed